

The motion is **granted**. If plaintiff intends to pursue this lawsuit, she must attend the next case management conference (in person, by Zoom, or through new counsel) to state her intentions concerning representation or self-representation. That CMC will also be an order to show cause why the case should not be dismissed for failure to prosecute.

Plaintiff is invited to attend the hearing on this motion if she is aware of it. If she intends to do so, she must notify both the Court and Mr. Starr by telephone call, by no later than 4:00 p.m. today (Tuesday).

Given that Starr's grounds for withdrawal are not confidential and are stated in his motion papers, there is no need for a personal appearance by him for an *in camera* hearing, unless Ms. Galvez gives notice that she will be appearing.

16. 9:00 AM CASE NUMBER: C25-03412
CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON
HEARING ON DEMURRER TO: RE FIRST AMENDED VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: TRUMARK HOMES

TENTATIVE RULING:

Petitioner, *in pro per*, filed this action to raise CEQA challenges to two approvals by the City of San Ramon to two amended housing development projects. The merits of those CEQA challenges are not before the Court.

The two real parties in interest in the case, joined by the City, demur to the petition on the ground that petitioner failed to exhaust administrative remedies, because he pursued no administrative appeals to the City Council from the adverse decisions of the Planning Commission. Although the first amended petition reflects that petitioner was aware of the exhaustion requirement, his asserted reasons for failing to do so are legally insufficient.

The demurrer includes an exhaustive, correct, and convincing explanation of the law governing the statutory requirement of exhaustion of administrative remedies, including any available administrative appeals, in CEQA cases. Petitioner has filed no opposition to this demurrer. He thereby effectively acknowledges and admits the correctness of the substance of the demurrer.

The demurrer of the real parties in interest and the City are therefore **sustained without leave to amend**.

18. 9:00 AM CASE NUMBER: MSC20-00575
CASE NAME: STARS HOLDING CO. VS. MEHRABI
***HEARING ON MOTION IN RE: SET ASIDE ORDER GRANTING APPLICATION FOR RIGHT TO ATTACHMENT ORDER AND QUASH THE WRIT OF ATTACHMENT BASED THEREON**
FILED BY: MEHRABI, KARIM

TENTATIVE RULING:

Before the Court is a motion by defendants to set aside the order granting application for right to